

24STCV28302 24STCV28302

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-09-10

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MOTION TO COMPEL

The Court tenders the following tentative decision in the matter Alexander Mota v. Mitchell Castillo, et al., Los Angeles County Superior Court case number 24STCV28302, set for hearing on September 10, 2026. Alexander Mota (Plaintiff) moves for an order compelling Athena Parking, Inc. (Defendant) to serve responses to its form interrogatories, set one (FROGs). Plaintiff also requests monetary sanctions in the total amount of \$3,435. Plaintiff's motion is denied.

When a party fails to serve a timely response to interrogatories or requests for production, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) Additionally, sanctions are imposed against a party who unsuccessfully opposes a motion to compel a response to interrogatories or requests for production. (Id., §§ 2030.290, subd. (c), 2031.300, subd. (c).) Sanctions may also be imposed for misuse of the discovery process, which includes failing to respond to an authorized method of discovery. (Id., § 2023.010, subd. (d).)

Here, Plaintiff served the relevant FROGs on Defendant on June 10, 2026. (Valenzuela Decl. ¶ 4.) Responses were due by July 14, 2026. (Id. ¶ 5.) No responses were served on that day. (Id. ¶ 7.) Defendant requested an extension on July 9, but received no response. (Domeyer Decl. ¶ 4, Ex. 2.) Defendant requested a second extension on July 28, but once again received no response. (Id. ¶ 5.) Plaintiff filed the present motion to compel that same day. Defendant served verified responses on August 20, 2026. (Id. ¶ 6.) Thus, the present motion to compel is proper, but responses need not

be ordered because they have been provided. However, Plaintiff may still be entitled to sanctions.

Plaintiff requests a total of \$3,435 in sanctions regarding its motion to compel. "The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.290, subd. (c).) Here, Defendant does not contest that it served late responses and has thus unsuccessfully opposed the present motion. However, the present circumstances make the imposition of sanctions unjust. Defendant requested extensions from Plaintiff but received no response, not even the threat of a motion. And Defendant provided responses before the hearing date for the present motion. Thus, the Court finds that it would be unjust to impose monetary sanctions on Defendant after its good faith efforts at informal resolution went ignored. Accordingly, Plaintiff's motion is denied.

Conclusion:

Plaintiff's
motion to compel is denied.